

- § 17 – the deadline needs to be increased from 45 to 60 days

Following the changes noted above, the Class Notice is approved for mailing in the manner described in the Settlement Agreement, which may include Spanish translation. As noted above, Spanish translation was not included a line item in the invoice provided by Phoenix. Prior to granting the motion, Plaintiffs' counsel must inform the Court if it is reasonably anticipated that any class member is Spanish speaking only. If so, the Class Notice will need to be sent in English and Spanish, which the Court anticipates may increase settlement administration costs to over the \$7,000 listed in the Class Notice.

Assuming the issue regarding Spanish translation can be resolved at the hearing, the Court intends to **GRANT** the motion. Based on the timeline, it appears that a Final Approval Hearing on **Monday, March 1, 2027 at 8:30 a.m. in Department 63** would provide sufficient time. Absent a request for a different date, the Court will calendar the Final Approval Hearing as noted. Plaintiff submitted a proposed Order that will be modified to reflect the Court's ruling.

J.G. WENTWORTH ORIGINATIONS, LLC VS. JUSTICE

CASE NUMBER: 26CV-0211558

Tentative Ruling on Petition for Approval for Transfer of Payment Rights: Petitioner J.G. Wentworth Originations, LLC seeks an order approving transfer of payment rights pursuant to California Insurance Code § 10134 et seq. Real Party in Interest/Transferor Heather Justice has agreed to transfer 17 annual payments (December 1, 2027 – December 1, 2043) of \$3,500 each and 198 monthly payments (December 1, 2027 – May 1, 2044) of \$150 in exchange for \$22,000.

Ins. Code § 10139.5(f)(2) requires notice of the proposed transfer and the application for its authorization must be served on all interested parties not less than 20 days prior to the scheduled hearing. The statute further requires that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that "Interested parties" means, with respect to a structured settlement agreement, the payee, the payee's attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee's death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is "fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Section 10137(a).

Ms. Justice has presented evidence that she is experiencing financial hardship and intends to use the funds to pay medical and credit card debt. The annuity is from a 2024 personal injury settlement and was not intended for future medical care or living expenses. Ms. Justice has no minor children and no support obligations. Ms. Justice is unemployed and currently receives \$500 per month from her annuity. The only other income listed by Ms. Justice is her husband's \$1,175 per month disability payment. Ms. Justice has completed three previous transfers since her annuity payments started in December 2024. Her Declaration indicates that she understands the terms of the transaction, although she has not sought independent legal or financial advice.

The Court is concerned that this is the fourth transaction in the past two years. The Court is also concerned that Ms. Justice is reducing her monthly income to \$350 and that her only other source of income is her husband's disability payment. Based on the information presently before the Court, the Court is unable to find that the transfer to be fair, reasonable, and in Ms. Justice's best interest based on the factors set forth in Ins. Code § 10139.5(b). The Court will need further information and intends to voir dire Ms. Justice. In order to proceed with this Petition, Ms. Justice will need to appear. **An appearance by Ms. Justice and counsel for Petitioner is required on today's calendar.**